

AOC-JV-29 Doc. Code: OEX
 Rev. 8-23
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 Commonwealth of Kentucky
 Court of Justice www.kycourts.gov
 KRS 610.010, .330; 635.010
 JCRPP 2, 6, 12, 19



**ORDER FOR EXPUNGEMENT
OF JUVENILE RECORD UPON**

☐ DISMISSAL
☐ FINDING/ADJUDICATION OF NOT DELINQUENT

Case No. _____
 Court [] District [] Family
 County _____
 Division _____

[participant case info review zone](#)

THE FOLLOWING EXPUNGEMENTS ARE REQUIRED BY LAW AND DO NOT REQUIRE ANY PETITION, MOTION, OR OTHER ACTION OF THE CHILD.

IN THE INTEREST OF: _____, A CHILD

DOB	Sex	Race	SSN

Complete either Section I. or II., whichever is applicable.

I. Check one

☐ **Dismissal for lack of jurisdiction (mandatory diversion).** The Court having found the above-named child eligible for mandatory diversion, pursuant to KRS 635.010(4), JCRPP 2E., and JCRPP 12D., and having dismissed the above referenced case, it is hereby ORDERED that:

OR

☐ **Dismissal at first appearance with intent to reinstate original complaint and divert.** The Court having dismissed the above-referenced case pursuant to the Commonwealth's motion to dismiss with the intent to reinstate the original complaint with the Court Designated Worker for diversion, pursuant to JCRPP 6D. and JCRPP 12D., it is hereby ORDERED that:

(1) All records in the custody of the Court concerning the following offense(s):

OFFENSE: _____

OFFENSE: _____

OFFENSE: _____

OFFENSE: _____

OFFENSE: _____

OFFENSE: _____

included in _____ (case number) are hereby expunged upon entry of this Order.

(2) Upon entry of this Order to expunge the above-specified records, the proceedings in the case shall be deemed never to have occurred, all index references shall be deleted, and the person and Court may properly reply that no record exists with respect to such offense upon any inquiry in the matter.

(3) The person whose record is expunged shall not have to disclose the fact of the record or any matter relating thereto on an application for employment, credit, or other type of application.

(4) Inspection of the records included in this Order may hereafter be permitted by the Court only upon Petition by the person who is the subject of such records, and only to those persons named in such Petition.

(5) The Court Designated Worker shall proceed with the diversion agreement process on the original complaint.

_____, 2 _____
 Date

 Judge

[signature/date review zone](#)

II. Check one

☐ **Finding/Adjudication of not delinquent.** The Court having found the child in the above-referenced case not delinquent, it is hereby ORDERED pursuant to KRS 610.330 that:

OR participant/case info review zone

☐ **Dismissal for any other reason.** The Court having dismissed the above-referenced case for any other reason(s), it is hereby ORDERED pursuant to KRS 610.330 that:

(1) All records concerning the following offense(s):

OFFENSE: _____ OFFENSE: _____

OFFENSE: _____ OFFENSE: _____

OFFENSE: _____ OFFENSE: _____

included in _____ (case number) which are in the custody of the Court and any such records which are in the custody of any other agency or official, including law enforcement records, shall be expunged, and this Order shall be proof and authority to the respective agency or official that the respective records must be expunged;

(2) Upon entry of this Order to expunge the above-specified records, the proceedings in the case shall be deemed never to have occurred, all index references shall be deleted, and the person and Court may properly reply that no record exists with respect to such offense upon any inquiry in the matter;

(3) The person whose record is expunged shall not have to disclose the fact of the record or any matter relating thereto on an application for employment, credit, or other type of application;

(4) Copies of this Order shall be sent to each of the following agencies or officials:

and;

(5) Inspection of the records included in this Order may hereafter be permitted by the Court only upon Petition by the person who is the subject of such records, and only to those persons named in such Petition.

_____, 2_____
Date

Judge

AGENCY CERTIFICATION

_____, an above-named agency ordered to expunge records in our custody, hereby certifies that ☐ the **agency has no records** in its custody relating to the Defendant/matter OR ☐ the **agency has completed the expungement** as directed by this Court.

Date: _____, 2_____. Agency Records Custodian: _____

signature/date review zone

INSTRUCTION TO CLERK: IF SECTION II. IS COMPLETED, SEND A COPY OF THIS ORDER TO THE AGENCIES OR OFFICIALS LISTED IN SUBSECTION (4).

CLERK: REFER TO CLERK'S MANUAL FOR INSTRUCTIONS ON FILING THIS CERTIFICATION.